

Srikant Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 October 2018 · WRIT - C No. - 33486 of 2018 · **Writ disposed; billing objection relegated to clause 6.5.**

HEADNOTE

A consumer alleging that an electricity bill was incorrect and excessive was relegated to Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The writ was disposed of with liberty to raise the dispute within two weeks, to be considered expeditiously within six weeks of filing.

FACTUAL SUMMARY

Srikant Yadav filed a writ petition in the Allahabad High Court challenging an electricity bill dated 31 January 2017 on the ground that it was incorrect and excessive. The respondents were the State of Uttar Pradesh and two others. After hearing counsel for the petitioner and Sri Mahboob Ahmad for the respondents, the Court did not inquire into the correctness of the bill and treated the grievance as one for which the Supply Code provides a complaint before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

[billing-objection-to-executive-engineer](#)

HOLDING

A consumer who alleges that an electricity bill is incorrect and excessive has a remedy under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 by complaint to the Executive Engineer, to be considered in accordance with law. The writ was disposed of with liberty to raise that dispute within two weeks, and any such application is to be considered most expeditiously within six weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 31.1.2017 IS INCORRECT OR EXCESSIVE

¶ 1